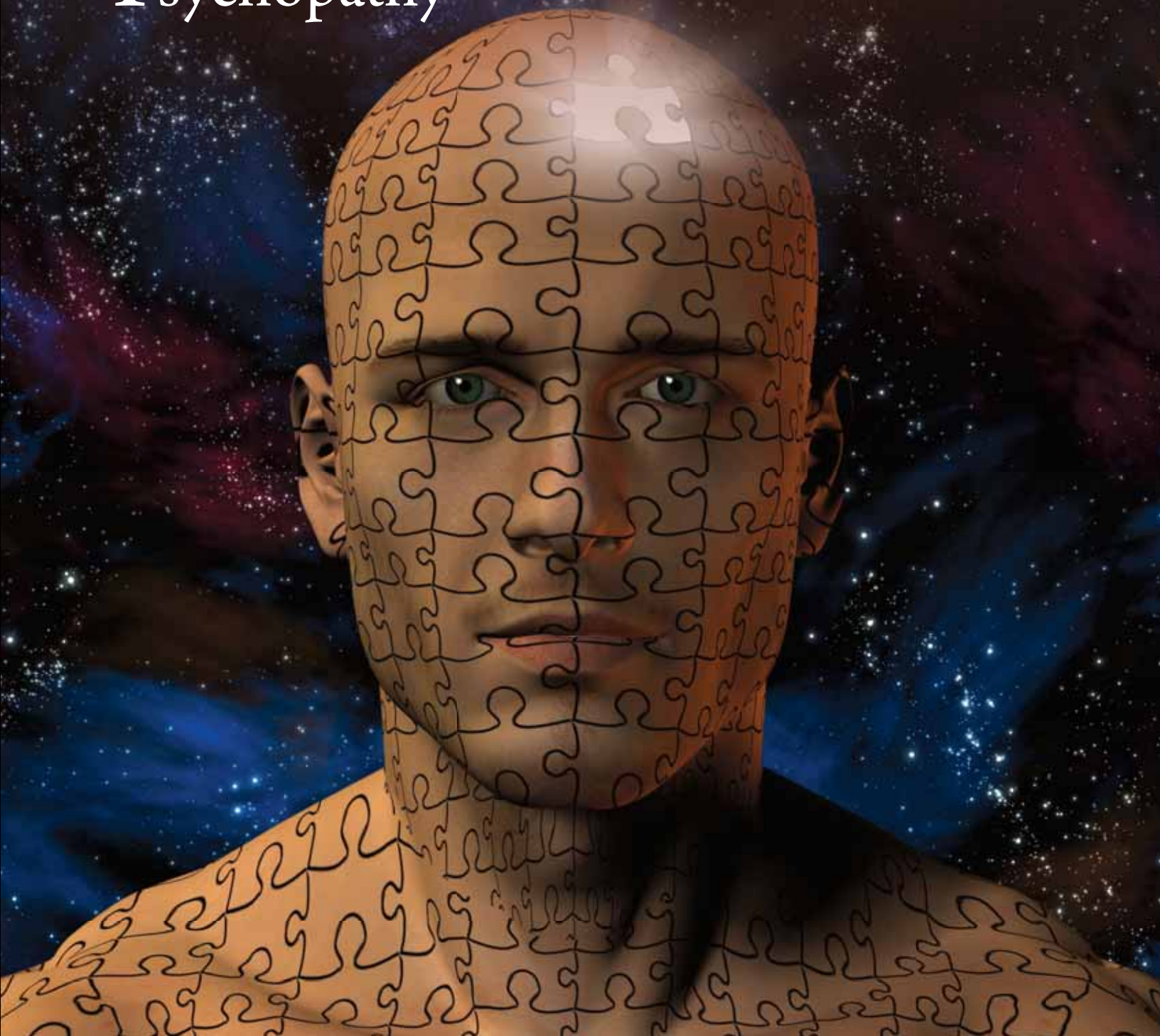
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Psychopathy



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Robert S. Mueller III
Director

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FBI Law Enforcement Bulletin

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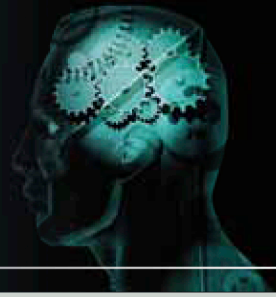
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Focus on Psychopathy

Psychopathy is a well-known concept in the discussion of criminal behavior. Members of the law enforcement community, media, and general public often quickly label an individual a psychopath when hearing tales of violent crime, serial killing, financial scandal, and public corruption. While people must take caution when labeling someone too hastily based on limited information, officers find investigative value in identifying behavior indicative of psychopathy. Quite simply, they can combat crime more effectively when knowing the offender.

Although associated with aggressive and antisocial actions, psychopathy differs, in general, from criminal behavior. Not all psychopaths are criminals. However, some are, and their criminal behavior is predatory in nature. People often describe these individuals as charming, manipulative, and without conscience. Although they make up only 1 percent or so of the general population, psychopaths commit a disproportionate amount of serious and violent crime. This illustrates why identifying psychopathic behavior proves critical to an investigator's mission.

Knowing and understanding an offender's personality traits can help officers develop appropriate strategies for complex and unusual investigations. To this end, comprehending an offender's psychopathy becomes critical in a serial murder, rape, or child abduction case. Crime scene and postoffense behavior of the psychopath likely will differ from that of nonpsychopaths committing similar offenses. These differences can help law enforcement link serial investigations. While preparing interview strategies, investigators benefit when they recognize their offender as a psychopath because certain themes may prove unsuccessful. While psychopaths present challenges to officers, they also possess personality traits that law enforcement can exploit successfully.

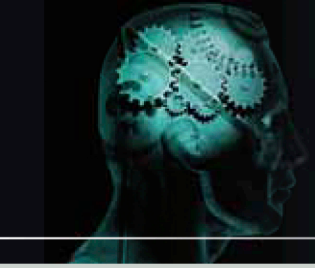
A clear and concise discussion of psychopathy can lead to a greater understanding of the challenges associated with these offenders. Further, this knowledge can promote and enhance cooperation between law enforcement entities to successfully combat the devastating effects criminal psychopaths have on society. To this end, the FBI can offer assistance and expertise.

Part of the Critical Incident Response Group, three Behavioral Analysis Units (BAUs) provide investigative and operational support to federal, state, local, and international law enforcement agencies through the application of investigative experience, training, and research. BAU resources have focused on unusual or repetitive cases of violent crime, such as sexual assault and serial, mass, and other murder; kidnapping; child abduction; missing persons; communicated threats; terrorist acts; public corruption; white collar offenses; and cyber crime.

The Training Division's Behavioral Science Unit (BSU) provides education in various topics in the behavioral sciences to law enforcement executives from around the world who attend the FBI's National Academy. Instructors also train new FBI agents, onboard employees, and state and local law enforcement partners through road schools across the country. In addition to their teaching duties, BSU members conduct research, host conferences, and write articles for publication on topics of importance to law enforcement to advance the field of knowledge in the behavioral sciences.

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Focus on Psychopathy

I am honored by the invitation to write an introduction to this focus issue of the *FBI Law Enforcement Bulletin.* I have spent my career conducting basic and applied research on psychopathy, a vitally important clinical construct. The academic view of psychopathy resonates seamlessly with those who work in the criminal justice system and routinely encounter people who embody the traits and behaviors that define this condition.

Psychopaths—perhaps 1 percent of the general population and 10 to 15 percent of offenders—are manipulative, deceptive, self-centered, lacking in empathy and guilt, callous, and remorseless. They present a serious challenge to everyone involved with criminal justice, including officers and investigators; judges, prosecutors, and defense attorneys; probation officers; corrections personnel; and psychologists, psychiatrists, and social workers. For more than three decades, I have had the pleasure of discussing the nature and implications of psychopathy with these groups. But, I derive particular satisfaction from working with those in the front line of law enforcement because they must face head-on the likelihood that some of the people with whom they deal are psychopathic. The consequences of these encounters always are uncertain and sometimes dangerous.

Most law enforcement officers learn quickly about the varieties and vagaries of human nature, and many have the experience and intuitive skills needed to guide their evaluations and interactions with the public. On the other hand, it is not uncommon for even the most astute officers to operate under the mistaken belief that others think and feel much as they do and to become the target of manipulation by one who is more skilled at playing head games. When officers do not know or suspect psychopathy during first contacts with individuals, the results can prove deadly, as Anthony Pinizzotto, Edward Davis, and Charles Miller III first showed in their 1992 publication *Killed in the Line of Duty: A Study of Selected Felonious Killings of Law Enforcement Officers.*[1] This also can prove problematic during criminal investigations, undercover work, hostage negotiations, and interrogations, in which assumptions about the personality of a suspect may help determine strategies and tactics. In cases that involve white collar crime, investigators also may feel frustrated and helpless when dealing with a system that seems to favor or fail to recognize the manipulative skills of psychopaths.

While welcome, the dramatic increase in awareness of the importance of psychopathy to the criminal justice system brings with it the need for caution. The emergence of media and other "experts" with little relevant formal training or experience has accompanied the popularity of movies and television dramas featuring criminal investigation and profiling. Unfortunately, the same holds true with respect to psychopathy and law enforcement. Authorities need to understand and refer to psychopathy properly, and those who provide training and consultation on the implications of psychopathy for law enforcement must have the credentials to do so. However, while qualified clinicians hold the responsibility for the *formal* assessment of psychopathy, those in law enforcement should continue to use their training, experience, and knowledge of psychopathy to generate hypotheses about the individuals they encounter. Simply recognizing that the behaviors and inferred traits of an individual seem consistent with psychopathy may prove useful in identifying effective investigative and interviewing strategies. In some cases, these informal impressions and evaluations may lead to requests for clinical assessments.

Over the years, I have had the honor and privilege of interacting and working with many outstanding experts in the FBI's Behavioral Analysis Unit and at the FBI Academy. Many have contributed to this focus issue, which realizes a dream that retired Supervisory Special Agent Mary Ellen O'Toole, Special Agent George DeShazor, and I had a decade or so ago. We thank the staff of the *FBI Law Enforcement Bulletin* for helping make this material available to the law enforcement community. I hope that the articles and information contained herein will motivate readers to dig more deeply into the theory and research on psychopathy. An up-to-date and downloadable list of publications on the topic is maintained at my Web site *http://www.hare.org.*

Endnotes

[1] Available from the Uniform Crime Reporting Program Office, FBI Complex, 1000 Custer Hollow Road, Clarksburg, WV 26206-0150 or by calling 888-827-6427 or 304-625-4995.

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Psychopathy
An Important Forensic Concept for the 21st Century

By PAUL BABIAK, M.S., Ph.D.; JORGE FOLINO, M.D., Ph.D.; JEFFREY HANCOCK, Ph.D.; ROBERT D. HARE, Ph.D.; MATTHEW LOGAN, Ph.D., M.Ed.; ELIZABETH LEON MAYER, Ph.D.; J. REID MELOY, Ph.D.; HELINÄ HÄKKÄNEN-NYHOLM, Ph.D.; MARY ELLEN O'TOOLE, Ph.D.; ANTHONY PINIZZOTTO, Ph.D.; STEPHEN PORTER, Ph.D.; SHARON SMITH, Ph.D.; and MICHAEL WOODWORTH, Ph.D.



Over the years, Hollywood has provided many examples of psychopaths. As a result, psychopaths often are identified as scary people who look frightening or have other off-putting characteristics. In reality, a psychopath can be anyone—a neighbor, coworker, or homeless person. Each of these seemingly harmless people may prey continually on others around them.

Psychopathy and Personality Disorder

The term *psychopathy* refers to a personality disorder that includes a cluster of interpersonal, affective, lifestyle, and antisocial traits and behaviors.[1] These involve deception; manipulation; irresponsibility; impulsivity; stimulation seeking; poor behavioral controls; shallow affect; lack of empathy, guilt, or remorse; sexual promiscuity; callous disregard for the rights of others; and unethical and antisocial behaviors.[2]

Psychopathy is the most dangerous of the personality disorders. To understand it, one must know some fundamental principles about personality. Individuals' personalities represent who they are; they result from genetics and upbringing and reflect how persons view the world and think the world views them. Personalities dictate how people interact with others and

how they cope with problems, both real and imagined. Individuals' personalities develop and evolve until approximately their late 20s, after which they are well-hardwired in place, unable to be altered.

Traits and Characteristics

Psychopathy is apparent in a specific cluster of traits and characteristics (see table 1). These traits, ultimately, define adult psychopathy and begin to manifest themselves in early childhood.[3] The lifelong expression of this disorder is a product of complex interactions between biological and temperamental predispositions and social forces—in other words, the ways in which nature and nurture shape and define each other.[4]

Many psychopaths exhibit a profound lack of remorse for their aggressive actions, both violent and nonviolent, along with a corresponding lack of empathy for their victims. This central psychopathic concept enables them to act in a cold-blooded manner, using those around them as pawns to achieve goals and satisfy needs and desires, whether sexual, financial, physical, or emotional. Most psychopaths are grandiose, selfish sensation seekers who lack a moral compass—a conscience—and go through life taking what they want. They do not accept responsibility for their actions and find a way to shift the blame to someone or something else.

Chameleons and Predators

In general, psychopaths are glib and charming, and they use these attributes to manipulate others into trusting and believing in them. This may lead to people giving them money, voting them into office, or, possibly, being murdered by them. Because of their interpersonal prowess, most psychopaths can present themselves favorably on a first impression, and many function successfully in society.

> ***Psychopaths can be adept at imitating emotions that they believe will mitigate their punishment.***

Many of the attitudes and behaviors of psychopaths have a distinct predatory quality to them. Psychopaths see others as either competitive predators or prey. To understand how psychopaths achieve their goals, it is important to see them as classic predators. For instance, they surf the Internet looking for attractive persons to con or, even, murder and target retirees to charm them out of their life savings for a high-risk investment scam, later blaming them for being too trusting. Most psychopaths are skilled at camouflage through deception and manipulation, as well as stalking and locating areas where there is an endless supply of victims.[5] The psychopath is an intraspecies predator, and peoples' visceral reaction to them—"they made the hair stand up on my neck"—is an early warning system driven by fear of being prey to a predator.[6]

The psychopath's egocentricity and need for power and control are the perfect ingredients for a lifetime of antisocial and criminal activity. The ease with which a psychopath can engage in violence holds significance for society and law enforcement. Often, psychopaths are shameless in their actions against others, whether it is murdering someone in a calculated, cold-blooded manner, manipulating law enforcement during an interview, or claiming remorse for actions, but blaming the victim for the crime. This particularly proves true in cases involving sexual offenders who are psychopathic.

If psychopaths commit a homicide, their killing likely will be planned and purposeful, not the result of a loss of emotional control; their motive more commonly will involve sadistic

gratification.[7] When faced with overwhelming evidence of their guilt, they frequently will claim they lost control or were in a rage when committing the act of violence. In fact, their violence often is emotionless, calculated, and completely controlled.[8] If psychopaths commit a serious crime with another individual (almost always a nonpsychopath), they often will avoid culpability by using the other individual to take the blame for the offense. Evidence suggests that this particular strategy is even more evident in serious multiple-perpetrator offences committed by a psychopathic youth with a nonpsychopathic partner.[9]

Myth Busting

Many misconceptions about psychopaths can lead to mistakes in investigations, interviews, and court proceedings. Psychopaths are both male and female, but more men are psychopaths than women. They represent all races, cultures, and socioeconomic backgrounds. Some are intelligent, while others possess average or below-average intelligence. They come from both single- and two-parent households and may themselves be married with children.

Psychopaths understand right from wrong. They know they are subject to society's rules, but willingly disregard them to pursue their own interests. They also are not out of touch with reality. They rarely become psychotic unless they also have a separate mental illness or use powerful drugs, such as stimulants. These hallmarks of genuine mental illness might be proposed during a criminal defense, but they often are successfully challenged at trial. Although usually manageable, psychopathy is not curable.

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Presence In Society

Many psychopaths have little difficulty joining the ranks of business, politics, law enforcement, government, and academia.[10] They exist in all lines of work, from executive to blue-collar professions. However, psychopathy often is misread, misdiagnosed, minimized, or explained away by professionals whose jobs require regular interaction with psychopaths, namely in the mental health, judicial, and law enforcement communities. When these professionals encounter psychopathy in the course of their work, their reaction and response to the psychopath may be too little and too late. Their lack of information can lead to serious consequences, ranging from mishandling the strategy for interviews and interrogations to believing a psychopath's complete fabrications as seemingly plausible explanations.

Assessment Tool

Following on approximately 40 years of empirical research, the Psychopathy Checklist-Revised, or PCL-R, has emerged as an ideal tool for the assessment of this personality disorder. Specific scoring criteria rate each of 20 items on a 3-point scale (0, 1, 2) according to the extent that it applies to a given individual. This test allows for a maximum score of 40; a score of 30 designates someone as a psychopath. The average nonpsychopath will score around 5 or 6 on this test. White-collar or corporate psychopaths likely will score lower—in the middle 20s—and sexually deviant psychopaths will tend to score higher.[11]

Psychopaths differ from each other, and their condition can vary in severity. Current research suggests a continuum of psychopathy ranging from those

Table 1

Traits and Characteristics of Psychopathy

Interpersonal	Affective	Lifestyle	Antisocial
Glib and superficial charm	Lack of remorse/guilt	Stimulation seeking	Poor behavior controls
Grandiose sense of self-worth	Shallow affect	Impulsivity	Early behavior problems
Pathological lying	Callous lack of empathy	Irresponsible	Juvenile delinquency
Conning and manipulation	Failure to accept responsibility	Parasitic orientation	Revocation of conditional release
		Lack of realistic goals	Criminal versatility

Robert D. Hare, Hare Psychopathy Checklist-Revised*, 2nd ed. (Toronto, ON: Multi-Health Systems, 2003).*

who are highly psychopathic to persons who have the same number or fewer traits in a milder form. A clinical assessment of psychopathy is based on the person having the full cluster of psychopathic traits—at least to some degree—based on a pattern of lifetime behaviors.

Many psychopaths are not violent. However, those who display violence and sexual deviance are generally more dangerous than other offenders, and their likelihood of reoffending may be significantly higher.[12] Psychopaths tend to have longer, more varied, and more serious criminal histories and, overall, are more consistently violent than nonpsychopaths. Their use of violence appears to be less situational and more directed toward particular goals than the type of violence displayed by nonpsychopaths.[13] It is estimated that approximately 1 percent of the general male population are psychopaths, and 15 to 20 percent of the prison population are psychopathic.[14]

Given the risk that psychopathic offenders pose for society, their ability to potentially manipulate the authorities poses concern. Psychopathic killers more likely will deny charges brought against them, and some indication exists that they are able to manipulate the criminal justice system to receive reduced sentences and appeal sentences to a higher court.[15] Also, psychopathic sex offenders are 2.43 times more likely to be released than their nonpsychopathic counterparts, while psychopathic offenders charged with other crimes are 2.79 times more likely to be released.[16] Their acting ability can enable them to frequently manipulate and persuade members of a parole board to release them approximately 2.5 times faster than other offenders up for parole, despite their longer list of offenses and elevated risk.[17] Psychopaths can be adept at imitating emotions that they believe will mitigate their punishment.[18]

Research suggests that the linguistic patterns of psychopaths are unique compared with the patterns of nonpsychopaths. Their stylistic differences

reflect how they view the world around them, as well as their profound emotional deficit and detachment from emotional events.[19] However, psychopaths' lack of feeling and bonding to others allows them to have clarity in observing the behavior of their prey. They do not get caught in or bogged down by the anxieties and emotions that other people experience in social situations.

Victims

The reactions of psychopaths to the damage they inflict most likely will be cool indifference and a sense of power, pleasure, or smug satisfaction, rather than regret or concern. Most people closely associated with a psychopath may know something is wrong with that person, but have no idea as to the depth of the pathology. They frequently will blame themselves for all of the problems they have had with a psychopath, whether at work, in a relationship, or within a family. After interacting with psychopaths, most people are stunned by these individuals' ruthlessness, callousness, and denial or minimization of the damage they have caused.

Conclusion

Psychopathy is not a diagnosis. About one-third of individuals in prison deemed "antisocial personality disordered," the current official Diagnostic and Statistical Manual of Mental Disorders (DSM) diagnosis for the chronically antisocial, will meet the criteria for severe psychopathy. In DSM's upcoming fifth edition, psychopathy will become one of five dimensions for describing a personality disorder, receiving the official diagnostic blessing of American psychiatry after approximately one-half century of research.

> ***"The ease with which a psychopath can engage in violence holds significance for society and law enforcement."***

Understanding the minds of psychopaths and their personality and behavioral traits allows authorities to design strategies that more likely will work with them. Psychopaths' manipulative nature can make it difficult for officers to obtain accurate information from them unless the law enforcement interviewer has been educated in specific strategies for questioning a psychopath. Professionals working in law enforcement, corrections, and other security-related professions must understand psychopathy and its implications.

Psychopathy has been described as the single most important clinical construct in the criminal justice system.[20] More recently, it is considered "the most important forensic concept of the early 21st century."[21] Because of its relevance to law enforcement, corrections, the courts, and others working in related fields, the need to understand psychopathy cannot be overstated. This includes knowing how to identify psychopaths, the damage they can cause, and how to deal with them more effectively.✦

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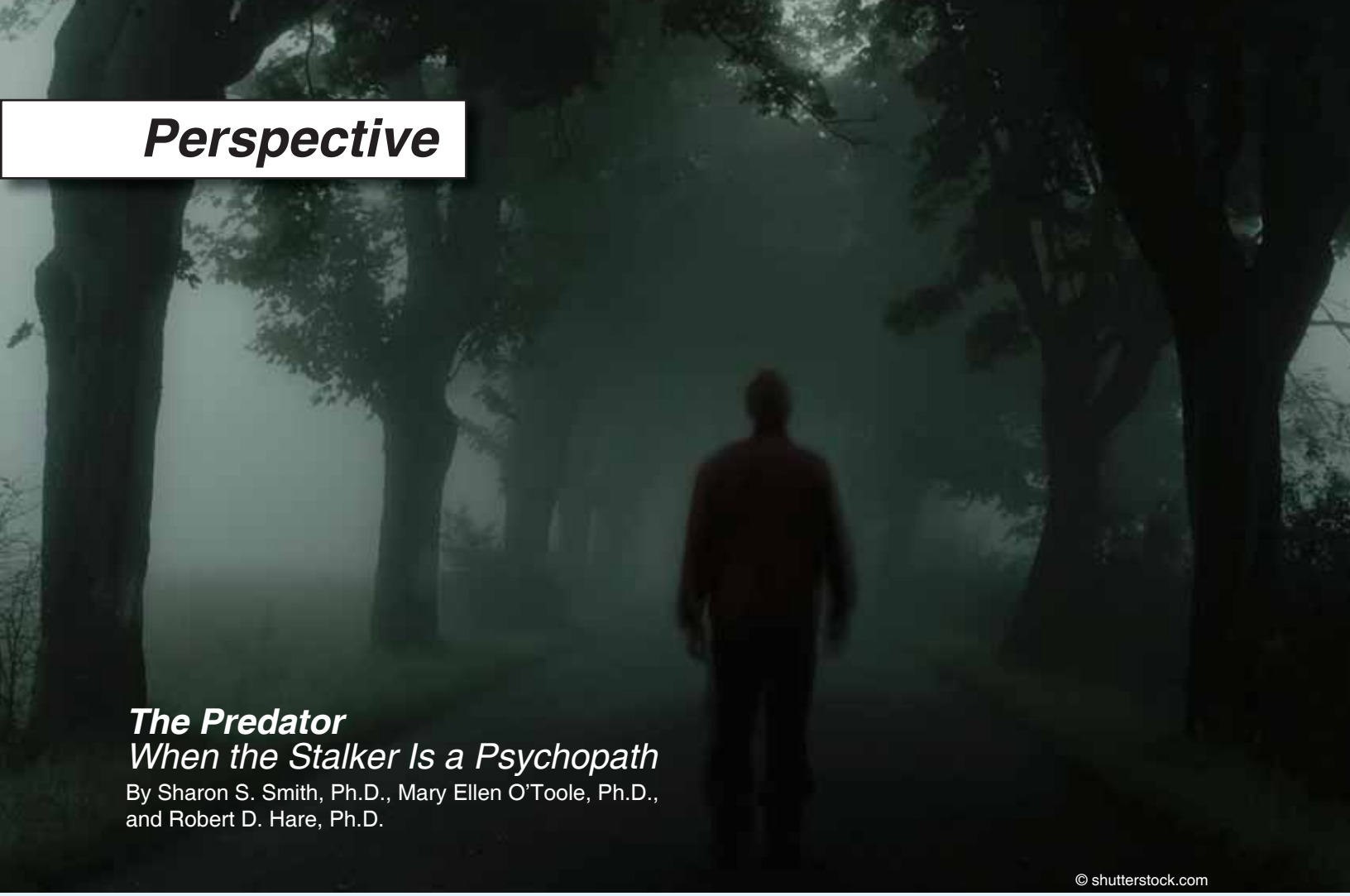
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The Predator
When the Stalker Is a Psychopath

By Sharon S. Smith, Ph.D., Mary Ellen O'Toole, Ph.D., and Robert D. Hare, Ph.D.

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Samuel Brown was a top executive of a Fortune 500 company.[1] Although he had a net worth of nearly $10 million, he was a family man with simple tastes and eschewed the trappings of power and wealth. Brown was a low-risk victim for violence. He resided with his wife in an affluent neighborhood where violent crime seemed nonexistent.

One morning, as was his custom, Brown dressed, left his home, tossed his briefcase into his car, and started the engine. As he walked to the end of his driveway to retrieve the morning paper, Anthony Lake jumped out of a nearby van and drew his gun. In the ensuing struggle, Lake fired his gun, wounding Brown, then shoved him into the van and drove away. Lake's female accomplice, tasked to drive a second (getaway) car, left the scene at the same time.

Brown died a painful death just days after he was kidnapped. Yet, over the next several weeks, Lake and his accomplice victimized the Brown family with an elaborate extortion scheme. They made numerous phone calls and sent a number of detailed ransom notes to the victim's family and employer, demanding $12 million for his safe release. Nearly 3 months following the abduction, Samuel Brown's decomposed body was found in a shallow grave.

STALKING

This case study examines the implications of psychopathy in crime scene analyses, specifically of stalking, threatening, and attendant assaultive behaviors. The study also illustrates specific crime scene behaviors that suggest an offender with psychopathic personality traits, as well as

the implications of these traits for investigators. Psychopaths' need for sensation seeking would be embedded in the design of their crime and emerge as a high-risk behavior.

Psychopaths' stalking behaviors tend to be predatory or instrumental in nature. The victim is viewed more as a possession or target for control, retribution, or revenge, rather than as the object of a pathologically based fantasy, obsession, or infatuation.[2] Further, psychopaths tend to become bored rather quickly and are thought to engage in short-term stalking with financial goals or those related to power and control.

Though most investigators are not qualified to conduct a formal clinical evaluation for the presence of psychopathy, even a few traits and behaviors inferred from the crime scene analysis may prove sufficient to generate a working hypothesis that the perpetrator of the crime is psychopathic. False positives concerning the potential presence of psychopathy during a stalking or threat investigation are unlikely to adversely affect the outcome of the investigation. However, failure to correctly interpret signs of psychopathic traits could significantly and negatively impact the outcome of a case, even to the extent of compromising the well-being of victims.

"…failure to correctly interpret signs of psychopathic traits could significantly and negatively impact the outcome of a case...."

VICTIMIZATION

Lake spent a great deal of time, effort, and personal resources while planning his crime. He watched Brown's house for months, recorded his routine, and carefully planned the kidnapping down to the smallest detail. Once he abducted Brown, Lake put him in a coffinlike box he already had constructed. Bound with ropes, blindfolded, and with his mouth covered with tape, Brown was kept in an unventilated room estimated to reach temperatures in excess of 100°F. Brown's only sustenance was water, and his only pain relief for his gunshot wound was over-the-counter medication. Although Lake later insisted that he always intended to release Brown upon receipt of the ransom, his victim died a few days after the abduction.

ANALYZING THE CRIME

The authors have not made a formal clinical diagnosis of Lake. Instead, they discuss specific crime scene and offender behaviors in terms of how they interpret them as characteristics of psychopathy.

Predatory and Instrumental Violence

Evidence from the crime indicated that the offender had surveilled Brown over a period of time to obtain information about his habits, lifestyle, and neighborhood. The victimology did not identify Lake's abduction of Brown as reactive violence—an immediate reaction to some real or perceived threat he might have felt. Instead, the primary mode of violence appeared thoughtful, premeditated, and goal directed, therefore instrumental or predatory. Lake's goal was to kidnap Brown, a high-value target, and extort his family and company for money. However, during the abduction, Brown was shot in the arm while struggling, a violent subact by Lake that appeared to have elements of both reactive and instrumental violence.

High-Value, High-Risk Target

Selecting Brown as a high-value target offered Lake the possibility of a large financial payoff

Further Reading

Dewey G. Cornell, Janet Warren, Gary Hawk, Ed Stafford, Guy Oram, and Denise Pine, "Psychopathy in Instrumental and Reactive Violent Offenders," *Journal of Consulting and Clinical Psychology* 64, no. 4 (August 1996).

Robert D. Hare, *Without Conscience: The Disturbing World of the Psychopaths Among Us* (New York, NY: Guilford Press, 1999).

Robert D. Hare and Matthew H. Logan, "Criminal Psychopathy: An Introduction for Police," in *The Psychology of Criminal Investigations: The Search for the Truth,* ed. Michel St-Yves and Michel Tanguay (Cowansville, QC: Editions Yvon Blais, 2009).

Mary Ellen O'Toole, "Psychopathy as a Behavior Classification System for Violent and Serial Crime Scenes," in *The Psychopath: Theory, Research, and Practice,* ed. Hugues Hervé and John C. Yuille (Mahwah, NJ: Lawrence Erlbaum and Associates, 2007), 301-325.

Michael Woodworth and Stephen Porter, "In Cold Blood: Characteristics of Criminal Homicides as a Function of Psychopathy," *Journal of Abnormal Psychology* 111, no. 3 (2002): 436-445.

and media attention. However, executing such an abduction was high-risk for the kidnappers. Their plan was fraught with inherent difficulties in terms of realistically assessing how the victim would react and maintaining him over a period of time while avoiding detection and arrest.

Brown's abduction occurred in daylight in front of his residence, located in an exclusive neighborhood with a low violent crime rate. Lake could not have prepared for all possible variables and scenarios that could interrupt his plan that morning, despite his prior surveillances. By selecting that place and time for the abduction, he put himself in the victim's comfort zone and risked identification or apprehension.

Sensation Seeking and Grandiosity

Completing this crime, obtaining the money, and evading capture and prosecution were unrealistic goals and grandiose in design. Kidnapping a high-value target certainly would trigger a quick and powerful response from the media and the law enforcement community, including the FBI. Lake probably was thrilled with this type of attention. Targeting a lesser known or less important individual would not have generated such a response and, as a result, likely would have been less exciting for him.

No Guilt and Callous Lack of Empathy

Brown lay tied up in a wooden box for several days after his kidnapping, entombed in a sweltering storage area and dying in his own waste of a gunshot wound. At the same time, news reports mentioned that he was a heart patient and relied on regular prescription medication. Brown did not have this medicine while in captivity, and Lake made no effort to obtain it for him. Lake's treatment of the victim showed a significant lack of empathy and demonstrated the extent of the physical and emotional pain inflicted.

During the investigation, Brown's wife made several emotional appeals through the media for her husband's safe release. Despite these appeals and Brown's death just days after his abduction, Lake continued the extortion for weeks. However, the tone and content of his demands changed subtly after Brown's death. He no longer provided

current evidence of Brown's well-being, such as having him audiotape the headlines of the daily paper. Nonetheless, Lake continued his demands for money using his deceased victim as a pawn. In his demands, Lake maintained that he would release Brown safely once the money was paid. This callous and deceptive behavior showed little regard for the victim or the impact of the crime on Brown's family or community, which was following the case closely.



Conning and Manipulation

Even after Brown's death, Lake continued to submit directives to law enforcement and the victim's family. The extortion notes he sent contained language that was controlling and devoid of emotion. Like a puppet master, he attempted to manipulate everything from a distance. Lake appeared to take particular pleasure in his efforts to deceive the FBI.

Failure to Accept Responsibility

In the end, Lake was defeated by his own elaborate but unrealistic plan for law enforcement to deliver the ransom money. The authorities set up surveillance on him after a call he made from a pay phone. While arresting Lake, they found incriminating evidence in his car, including Brown's home address and bags for holding the extortion money. Although Lake refused to cooperate with authorities, his female companion eventually led them to Brown's body. Despite his callous treatment of Brown and his family, Lake portrayed himself to the authorities as a normal person driven to desperate measures because of circumstances beyond his control.

Antisocial Behavior

The case study is not a single offense that took place at one point in time. This crime involved stalking, abduction, assault, murder, and extortion, which occurred over an extended period of time. Lake demonstrated an ability to manage and sustain complex, layered criminal behaviors over a period of weeks. These behaviors suggested an offender who was adaptable and criminally versatile and who had a clear disregard for the rules of society and the rights of others.

IMPLICATIONS FOR INVESTIGATORS

Analysis of Lake's behavior, paired with information from the crime scene, was enough to imply his psychopathic nature and suggest investigative strategies to move forward. For example, it was unlikely that Lake would respond to emotional appeals made by Brown's family through the media for his safe release. More fruitful appeals would recognize and concede that Lake was in control and imply that meeting his demands was a priority for law enforcement. Concurrently, any direct or implied challenges to or offensive remarks about the offender from law enforcement could have resulted in an escalation of the crime.

Law enforcement officers cannot rely on psychopathic offenders to follow through on reached agreements. They likely will not have an emotional bond with the victim.[3] Therefore, the possibility of harm to the victim will not diminish with time.[4] Such offenders are mission oriented and probably will not abandon their crime, at least in the short run. Any suggestions they make regarding future acts that will be done to continue the crime should be taken seriously.

After apprehending an offender, authorities can devise interview strategies based on psychopathic characteristics. Interviewers can assume that the offender may attempt to manipulate and control the interview with a demeanor of arrogance and superiority. For this reason, selecting the right interviewer is important. The ideal candidate will remain unhindered by the offender's antagonizing nature.

Open-ended questions might encourage offenders to do most of the talking. They likely will brag about the crime, berate the interviewer, and allege incompetence in the police investigation. However, offenders' arrogance and sense of superiority may compel them to inadvertently provide information helpful to the investigation.

Investigators' comments about the fate of victims or the impact of their death on the family likely will not be productive because of psychopathic offenders' callousness and lack of empathy. Focus instead should be placed on complimenting offenders and their superior abilities to manipulate investigators, particularly the FBI, for such a long period of time. The interviewer also should devise strategies that appear to minimize the consequences of offenders' actions.

CONCLUSION

Psychopathy is a personality disorder defined by a cluster of interpersonal, affective, lifestyle, and antisocial traits and behaviors that pose a serious problem for society. The behavioral repertoire of a psychopath includes charm, manipulation, intimidation, lack of empathy, excessive pride, and violence. Each of these is a tool investigators can use as the occasion demands. As evidenced in the case study, a psychopath can display a callous disregard for the rights of others and a high risk for a variety of predatory and aggressive behaviors. Clearly, these characteristics have strong implications for the strategies used by law enforcement and security professionals when they must deal with stalking, threats, and attacks directed at public figures, like the late Samuel Brown.✦

Endnotes

[1] This article has been edited from its originally published format. See Mary Ellen O'Toole, Sharon S. Smith, and Robert D. Hare, "Psychopathy and Predatory Stalking of Public Figures," in *Stalking, Threatening, and Attacking Public Figures: A Psychological and Behavioral Analysis*, ed. J. Reid Meloy, Lorraine Sheridan, and Jens Hoffman (New York, NY: Oxford University Press, 2008). To protect the identities of all parties, the authors have employed pseudonyms and removed potentially identifying information while faithfully portraying the important facts of the case.

[2] J. Reid Meloy, *Violence Risk and Threat Assessment* (San Diego, CA: Specialized Training Services, 2000).

[3] J. Reid Meloy, *The Psychopathic Mind: Origins, Dynamics, and Treatment* (Northvale, NJ: Jason Aronson, 1988); Meloy, *Violence Risk and Threat Assessment*; J. Reid Meloy, ed., *The Mark of Cain: Psychoanalytic Insight and the Psychopath* (Hillsdale, NJ: The Analytic Press, 2001).

[4] Meloy, *Violence Risk and Threat Assessment*.

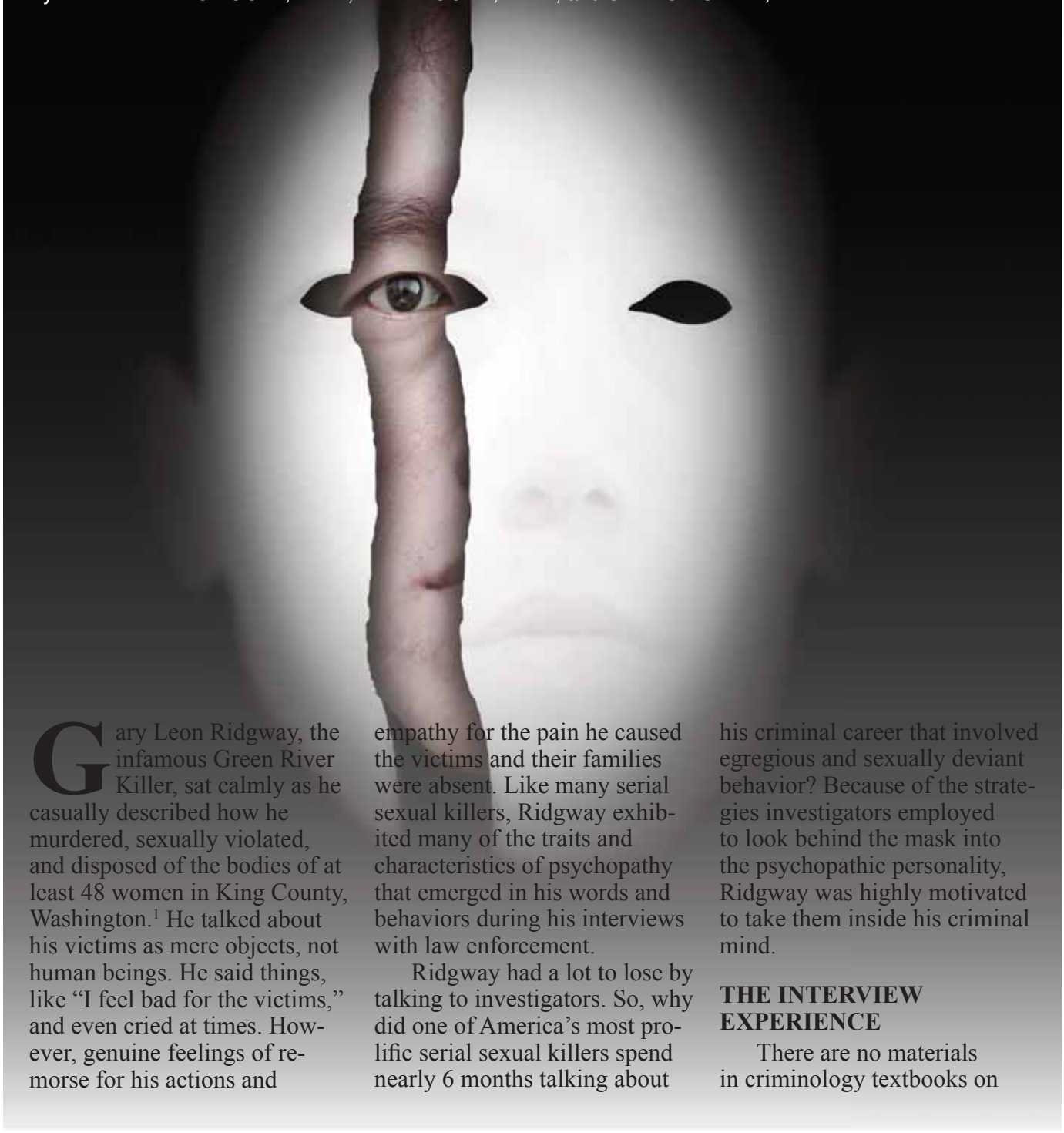
Dr. Smith, a retired special agent with the FBI's Behavioral Science Unit, is a consultant on criminal and corporate psychopathy for intelligence- and security-related government and law enforcement agencies.

Dr. O'Toole has served with the FBI's Behavioral Analysis Unit and is a private forensic behavioral consultant and an instructor at the FBI Academy.

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Looking Behind the Mask
Implications for Interviewing Psychopaths

By MARY ELLEN O'TOOLE, Ph.D.; MATT LOGAN, Ph.D.; and SHARON SMITH, Ph.D.



Gary Leon Ridgway, the infamous Green River Killer, sat calmly as he casually described how he murdered, sexually violated, and disposed of the bodies of at least 48 women in King County, Washington.[1] He talked about his victims as mere objects, not human beings. He said things, like "I feel bad for the victims," and even cried at times. However, genuine feelings of remorse for his actions and empathy for the pain he caused the victims and their families were absent. Like many serial sexual killers, Ridgway exhibited many of the traits and characteristics of psychopathy that emerged in his words and behaviors during his interviews with law enforcement.

Ridgway had a lot to lose by talking to investigators. So, why did one of America's most prolific serial sexual killers spend nearly 6 months talking about his criminal career that involved egregious and sexually deviant behavior? Because of the strategies investigators employed to look behind the mask into the psychopathic personality, Ridgway was highly motivated to take them inside his criminal mind.

THE INTERVIEW EXPERIENCE

There are no materials in criminology textbooks on

interviewing an evil person or a monster, terms frequently used to describe a psychopath. These terms have no meaning in the legal or mental health nomenclature. A psychopathic individual is not necessarily evil nor a monster. A psychopath is someone with specific personality traits and characteristics.

Many law enforcement professionals consider themselves skilled interviewers because of their training and the volume of interviews they have conducted throughout their careers. However, when interviewing psychopaths, the dynamics change, and existing skills can prove inadequate. Interviews with these individuals quickly can derail unless investigators understand what to anticipate and how to use the psychopath's own personality traits as tools to elicit information.

PSYCHOPATHIC TRAITS

A knowledgeable investigator can identify a multitude of psychopathic traits and characteristics by reviewing crime scene information, file data, prior interviews, mental health assessments, and relevant information provided by associates and family members. When sorting through this documentation, interviewers should look for lifetime patterns of behavior that manifest traits of psychopathy.

Glib and Charming

Psychopaths often exude charm and charisma, making them compelling, likeable, and believable during interviews. They can display a sense of humor and be pleasant to talk with. Their charm allows them to feign concern and emotion, even crying while they profess their innocence. Because it is in their best interest, throughout their lives they have convinced people that they have normal emotions. If they perceive that their charm is not working, it quickly will vanish, being replaced by a more aggressive or abrasive approach. Interviewers are inclined to lecture or scold the psychopath; however, these strategies likely will not work.

> ***…when interviewing psychopaths, the dynamics change, and existing skills can prove inadequate.***

Psychopaths often appear at ease during interviews that most people would find stressful or overwhelming. Several explanations exist for their apparent lack of concern, including an absence of social anxiety. They seek or create exciting or risky situations that put them on the edge.

Interviewers often are nervous or anxious. During the first 5 minutes of the interview, when impressions are being formed, engaging in small talk, fidgeting with cell phones or notepads, or showing uncertainty regarding seating arrangements can communicate to psychopaths that interrogators are nervous or unsure of themselves. Psychopathic individuals view this as a weakness.

Stimulation Seeking

Their need for stimulation and proneness to boredom means psychopaths often become disinterested, distracted, or disconnected during interviews. A single investigator may not provide sufficient stimulation and challenge. Consequently, the dynamics need to change to keep the psychopathic offender engaged. This may involve using multiple interviewers, switching topics, or varying approaches. The interviewer's strategies may include using photographs or writings to supplement a question-and-answer format, letting suspects write down ideas and comments for discussion, or having the psychopath act as a teacher giving a course about

criminal behavior and providing opinions about the crime.

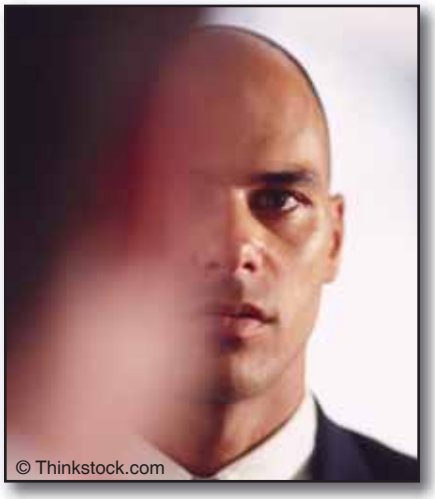
Narcissistic

A psychopath's inherent narcissism, selfishness, and grandiosity comprise foundations for theme building. Premises used in past successful interviews of psychopathic serial killers focused on praising their intelligence, cleverness, and skill in evading capture as compared with other serial killers.[2] Because of psychopaths' inflated sense of self worth and importance, interviewers should anticipate that these suspects will feel superior to them. Psychopathic individuals' arrogance makes them appear pseudointellectual or reflects a duping delight—enjoyment at playing a cat-and-mouse game with the interrogator.

Stressing the seriousness of the crime is a waste of time with psychopathic suspects. They do not care. As distasteful as it might be, investigators should be prepared to stroke psychopaths' egos and provide them with a platform to brag and pontificate. It is better to emphasize their unique ability to devise such an impressive crime, execute and narrate the act, evade capture, trump investigators, and generate media interest about themselves.

Irresponsible

The possibility that psychopaths' actions may result in them going to jail has little impact on their decisions. Therefore, pointing out the consequences of their behavior will not work. Their unrealistic goal setting causes many psychopathic offenders to believe they will escape charges, win an appeal, have a new trial, or receive an acquittal. Unable to accept blame, these individuals quickly minimize their involvement in anything that negatively reflects on them. They usually



avoid responsibility for their actions and frequently deny that real problems exist. Investigators can connect with psychopathic offenders by minimizing the problem or the extent of the damage. This facilitates the suspect's disclosure of details about the offense.

Pathologically Deceptive and Manipulative

Most psychopaths are pathological liars who will lie for the sake of getting away with it. They will lie about anything, even issues that are insignificant to the crime or investigation. Lying is not a concern for them, and they do not feel anxious or guilty about doing it. Challenging a psychopathic individual's statements will be counterproductive, especially if done too early in the interview. Investigators should keep psychopaths talking so their contradictions and inconsistencies mount. Their arrogance and impulsive nature result in bragging, preaching, trying to make an impression, or just showing off. This is when they slip and provide important information about themselves and their crimes.

Interviewers should be prepared for a psychopathic suspect to hijack the interview by bringing up topics that have nothing to do with the crime. This can result in a loss of valuable time. To bring the discussion back on track an interrogator could say "You raise important issues that I had not thought of, but right now I want to get back to discussing the crime."

Predator

Generally, psychopaths are predators who view others around them as prey. Whether the suspect is dressed in a suit or in dirty, ragged street clothes, this mind-set carries over and impacts the interview. This

Additional Resources

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R.D. Hare, *The Hare Psychopathy Checklist-Revised* (Toronto, Ontario, Canada: Multihealth Systems, 2003)

R.D. Hare, "Psychopaths and Their Nature: Implications for the Mental Health and Criminal Justice Systems," in *Psychopathy: Antisocial, Criminal, and Violent Behavior,* ed. T. Millon, E. Simonson, M. Burket-Smith, and R. Davis (New York, NY: Guilford Press), 188-212

R.D. Hare and M.H. Logan, "Introducing Psychopathy to Policing," in *Psychologie de L'enquête: Analyse du Comportement et Recherche de la Vérité,* ed. M. St-Yves and M. Tanguay (Quebec, PQ: Editions Yvon Blais, 2007)

M.H. Logan, R.D. Hare, and M.E. O'Toole, "The Psychopathic Offender," *The RCMP Gazette*, no. 66 (2005): 36-38

M.E. O'Toole, "Psychopathy as a Behavior Classification System for Violent and Serial Crime Scenes," in *The Psychopath: Theory, Research, and Practice*, ed. H. Hervé and J. Yuille, (Mahwah, NJ: Lawrence Erlbaum and Associates, 2007), 301-325

U.S. Department of Justice, Federal Bureau of Investigation, *Serial Murder: Multidisciplinary Perspectives for Investigators* (Washington, D.C., 2005), *http://www.fbi.gov/stats-services/publications/serial-murder*

means the psychopathic individual may attempt to invade the interviewer's personal space. These offenders might note and react negatively when interrogators write things down and when they do not. They will watch the interrogator's behavior for signs of nervousness, anxiety, frustration, and anger and react to those signs. Psychopaths use what they can to their advantage.

While incarcerated in San Quentin State Prison in California, infamous cult leader Charles Manson participated in an on-camera interview with a well-known national news correspondent. Prior to the interview, prison officers set up the room and told Manson where to sit. There were three armed correctional officers present to monitor Manson's behavior. Upon entering the room, Manson immediately walked around the tables to the other side where the reporter stood. He physically leaned into the reporter, touched him on his shoulders, and shook his hand. This display of arrogance, dominance, and invasion of personal space, which took less than 1 minute, caught the reporter completely off guard. When they sat down, in an effort to build rapport, the correspondent tried to talk with Manson about the beautiful California weather. Manson ignored him, but said that he had just come out of solitary confinement. The reporter asked Manson to talk about a routine day there at the prison.

Some interviewers would reprehend Manson on his behavior, order him to the other side of the room, and let him know who is in charge. Invading another's space and trying to take charge are behaviors

that a psychopath will exhibit throughout an interview. Investigators should anticipate these actions.

Manson had just come out of solitary confinement, where he likely was bored. Asking what his routine was like would have catapulted Manson back into a state of mind—boredom—inconsistent with a psychopath's need for thrill and excitement. Manson's actions suggested that he needed to feel dominant and in control. In this case, an interviewer could have focused on Manson and let him feel that he decided the topic by asking open-ended questions, such as "What do you want to talk about?" Interrogators needed to minimize personal views and insights; seek Manson's opinion; and ask about his greatness, crimes, and notoriety compared with others. Law enforcement officers should be aware of the psychopath's early onset boredom and be prepared to incorporate strategies to keep the individual stimulated and interested.

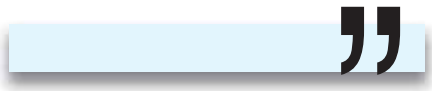
Unremorseful and Nonempathetic

Psychopathic offenders are not sensitive to altruistic interview themes, such as empathy for their victims or remorse over their crimes. Their concern is for themselves and the impact the meeting will have on them. Psychopaths blame their victims for what happened and consider the victims' fate irrelevant.

Many psychopaths have the intellect to understand that others experience strong emotions. These individuals have learned to simulate sentiment to get what they want. When pressed to explain in detail their feelings about their victim, the crime, or the damage caused, a psychopath's words, descriptors, and concomitant behaviors will be lacking.



Psychopaths blame their victims for what happened and consider the victims' fate irrelevant.



Throughout the interview, interrogators should include detailed questions about the psychopath's emotions, such as "How did you feel when you learned the police were investigating you?" or "What do sadness and regret feel like to you?" Probing with emotional questions likely will rattle and frustrate psychopaths because they cannot explain feelings they do not have or consider important. Often, these questions evoke agitated responses that are helpful to interviewers.

After asking feeling questions, interviewers should pose intellectual ones about the crime scene, victim, or offense, suggesting that mistakes occurred during the crime. The combination of frustration with emotional questions and inferences of a flawed crime will result in irritation because psychopaths' grandiosity in thinking means that they feel they do not make mistakes. This annoyance results in psychopaths making impulsive, uncensored statements that may help investigators.

RAPPORT BUILDING

Interviewers establish trust and bond with psychopaths by finding common ground. This involves disclosing personal information, including opinions, thoughts, observations, and feelings. Bonding or emotionally connecting with psychopathic individuals does not work because they have a myopic view of a world that revolves solely around them. They do not care about the interviewer's feelings or personal experiences. Interviewers must connect with psychopaths by making them think the interview is about them.

CONCLUSION

Through their behavior, psychopaths' convince interviewers that they have remorse when they have none and that they feel guilt when they do not. Their glib and charming style causes law enforcement officers to believe the suspects were not involved in the crime. The psychopathic individual's grandiosity and arrogance offends investigators. Their pathological lying frustrates and derails the interviewer's best efforts. However, with the proper preparation, knowledge, and understanding of psychopathy, law enforcement investigators can go behind the mask and see the true psychopathic personality beneath. Using dynamic and subtly changing strategies during interviews can create an environment where psychopaths less likely will predict the next steps and more likely will talk about their offenses and criminal superiority. ✦

Endnotes

[1] King County Sheriff's Office, "Green River Homicides Investigation," *http://www.kingcounty.gov/safety/sheriff/Enforcement/Investigations/GreenRiver/aspx* (accessed January 30, 2012).

[2] U.S. Department of Justice, Federal Bureau of Investigation, *Serial Murder: Multidisciplinary Perspectives for Investigators* (Washington, DC, 2005), *http://www.fbi.gov/stats-services/publications/serial-murder* (accessed January 18, 2012).

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Dr. Logan, a retired staff sergeant with the Royal Canadian Mounted Police and a psychologist, provides forensic behavioral consultation and training for the law enforcement and criminal justice communities.

Dr. Smith, a retired special agent with the FBI's Behavioral Science Unit, is a consultant on criminal and corporate psychopathy for intelligence- and security-related government and law enforcement agencies.

Wanted:
Notable Speeches

The *FBI Law Enforcement Bulletin* seeks for its Notable Speech department transcripts of presentations made by criminal justice professionals. Anyone who has delivered a speech recently and would like to share the information with a wider audience may submit a transcript of the presentation to the *Bulletin* for consideration.

As with article submissions, the *Bulletin* staff will edit the speech for length and clarity, but, realizing that the information was presented orally, maintain as much of the original flavor as possible. Presenters should submit their transcripts typed and double-spaced on 8 ½- by 11-inch white paper with all pages numbered, along with an electronic version of the transcript, or e-mail them. Send the material to: Editor, *FBI Law Enforcement Bulletin,* FBI Academy, Quantico, VA 22135, or to *leb@fbiacademy.edu*.

Case Study



No More Bagpipes
The Threat of the Psychopath

By Matt Logan, Ph.D.

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Although I am a retired officer who believes in amazing grace, I have grown tired of hearing the bagpipes and seeing thousands of other officers doing a slow march. I am overwhelmed and saddened when watching a chief try to comfort a widow or mother of our too-often-fallen heroes.

In 2010, a tragic wave of violence against America's law enforcement officers resulted in the shooting of 11 within a 24-hour time frame. In late January 2011, the murder of 9 officers in 9 days took me back to the worst memories of my 28-year policing career with the Royal Canadian Mounted Police (RCMP).

A dangerous personality—the psychopath in society—kills many members of our criminal justice family. I wish to state, unequivocally, that we can predict some of these incidents—and if predictable, they are preventable.

TRAGIC CASE

A historical Canadian case serves as an example that draws a parallel from my experience. On March 3, 2005, in the small town of Mayerthorpe, Alberta, Canada, four RCMP officers were killed in the line of duty. Targeted victims, their role as authority figures set off the sequence of events. I believe that this carefully planned and executed attack did not involve an individual merely "snapping." In the mind of perpetrator James Roszko, the time had come for this inevitable event. It was an act of instrumental (planned and goal directed), not impulsive, violence.

During the early afternoon of the day before the attack, bailiffs entered the rural farm occupied by Roszko—who previously had damaged visiting officials' vehicles—to execute a civil order related to the seizure of his truck. Roszko's property contained a mobile home, a large prefabricated hut, other outbuildings, and various vehicles. Roszko released two large, vicious dogs previously secured in a small wooden shed.

A few minutes elapsed, and the bailiffs saw Roszko at a white truck, similar to the one they planned to seize, parked near the mobile home. He started the vehicle, drove it erratically around the yard and then down the driveway toward the bailiffs, made a circular turn, and stopped near them with his driver's window open. Roszko made an obscene gesture and yelled profanities. After seeing him drive across the field, the bailiffs called the RCMP's Mayerthorpe office to ask for officers to respond and keep the peace while they performed their duties.

Subsequently, RCMP officers and the bailiffs entered the large hut and discovered a marijuana operation. They also saw a large stolen generator, as well as some dismantled vehicles with no identifying plates. A 24-hour search warrant was endorsed by a justice and faxed to the Mayerthorpe

RCMP office. Shortly thereafter, a marijuana task force arrived on site. RCMP officers and task force members remained on the scene and conducted a productive search that yielded solid evidence of stolen auto parts. Officers secured the property pending the examination of the scene by an auto theft unit, which arrived in an unmarked vehicle early on the day of the attack.

Sometime during the night or early morning, Roszko made an approach on foot to the large hut, where he waited. Later, four officers entered. Outside, the two auto theft investigators, while readying their equipment and donning coveralls, heard two loud bangs and wondered what the other officers were doing inside. A series of six more sounds resembling gunshots occurred. One of the investigators yelled words to the effect of "that's gunfire," started to run toward the hut, and removed his pistol. As he ran, he heard more gunfire, yelling, and screaming from inside.

> **"A dangerous personality—the psychopath in society—kills many members of our criminal justice family."**

Roszko hid near a 500-gallon plastic container in a corner of the hut when the officers entered. Once all four were inside, Roszko fired rounds, striking each of them multiple times, and then exited. He stopped and noticed another officer to his right, who noted that Roszko had a long-barrelled rifle slung over his shoulders, an assault rifle in his hands across his chest, and a semiautomatic pistol in his waistband. Roszko turned toward him and fired two shots. One round struck the police vehicle the officer was using for cover, and the other narrowly missed to his left, striking the rearview mirror on the passenger's side. The officer fired two shots directly at Roszko, who stumbled and reentered the hut, out of the officer's line of sight.

The officer instructed his partner to bring the police vehicle for cover. He then walked backward with his weapon trained on the doorway and took a kneeling defensive position at the right rear of the vehicle. His partner called 911 from his cell phone. No further sounds, other than the portable police radios that the other officers had on their hips, came from the hut. The officers then used their police car radio to call the other officers inside and to direct Roszko to come out. No further sounds or movement. Members of the emergency response team later found the deceased bodies of the four officers, as well as Roszko—he died not from the two officer-inflicted gunshot wounds, but from a self-inflicted one.

Psychological Autopsy

Along with other members from RCMP's British Columbia Major Crimes Unit, I responded to Mayerthorpe. My role was to conduct on James Roszko a *psychological autopsy*—"a procedure for investigating a person's death by reconstructing what the person thought, felt, and did before death, based on information gathered from personal documents, police reports, medical and coroner's records, and face-to-face interviews with families, friends, and others who had contact with the person before the death."[1] Most often, investigators use this procedure in cases of suspected suicide or in an attempt to reconstruct the life and character of the deceased. The process focuses on identifying the deceased's state of mind at the time of death and discovering behavioral patterns that might accompany suicidal and homicidal intent. In the case of homicide, investigators focus on victimology because it serves as a key piece in determining victim selection.

The psychological autopsy can help determine the mode of death, as well as the contributing factors. Why did the perpetrator do this? Why now? Why this person and in this manner? This diligent process includes interpersonal, affective, and behavioral characteristics and can help find patterns consistent with personality disorders or mental illnesses. Actuarial measures assist in detecting psychopathy and revealing potential violence. Finally, the assessment provides the reflective analysis necessary to gain information to help determine and predict future violent behavior.

James Roszko

I identified James Roszko as a psychopath. My file review assessment using the Psychopathy Checklist-Revised (PCL-R) placed him in the 91st percentile of offenders.[2] The score on one factor (selfish, callous, and remorseless use of others) put him in the top 1 percent of inmates. Clearly, this score more than exceeded the cutoff for psychopathy. The instrumental nature of the violent act in Mayerthorpe is clear. I believe that Roszko waited for and, likely, fantasized for years about this showdown with police. In his mind, this callous act avenged all of the perceived wrongs done to him by law enforcement officials. Further, their presence on his farm provided him a sense of entitlement to defend his property.

> **"A valuable officer safety initiative allows law enforcement members to be forewarned and forearmed."**

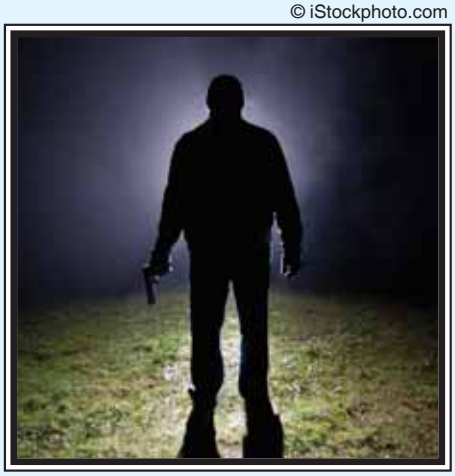
Because of ongoing trials that ended only recently, this is the first time—7 years after the incident—that I have been allowed to discuss these matters. I know of Roszko's deviance, level of psychopathy, and fantasy about killing officers because of observations I made at his residence. The first thing I noticed when entering Roszko's home was a newspaper clipping taped to the sideboard beside the sink. The article focused on the release of a "cop killer" and featured the photo of Albert Foulston, convicted of manslaughter in the 1990 murder of Edmonton, Alberta, Police Officer Ezio Faraone. By the end of that day spent in Roszko's residence, it made sense to me that he would revere such an individual.

In his bedroom were two magazines. One was a report with a "no surrender" theme that featured a photo of a rifle on the cover. The second contained an article pertaining to the two Columbine killers. I maintain that you can tell a lot about persons by what they keep in their bedrooms—for many individuals, their precious possessions, favorite reading materials, and most intimate writing.

Sometimes, particularly for deviant child molesters, this includes illegal items of pornography that the offender values and protects. After searching the home of a sexually deviant person for a couple of hours, I expect to find a cache of photos. In this case, initially I did not. I sat on the end of Roszko's bed and scanned the room, looking for the best storage location for such materials. I walked over to the closet, reached up above the opening, and tapped on the panelling inside the closet. After a piece came loose, I reached in and extracted a package tightly wrapped in plastic. This seemed to be a treasure for Roszko, one that he would not let even a tornado or flood damage. After unwrapping it, I had approximately a 2-foot pile of shrink wrap at my feet, and I held a stack of photos that graphically revealed Roszko—a tattoo identified him as the aggressor—plying two adolescent males with substances and then performing sexual acts on them.

The combination of psychopathy, antisocial characteristics, schizotypal traits, sexual deviance, paranoia, and a strong desire for revenge identified Roszko as a very volatile and dangerous individual. Adding his callous and aggressive personality, fascination with guns, and hatred of the police made him a ticking bomb. I now recognize the approach onto his property as the detonator. His defense of his home was a raison d'être for him, and he likely both fantasized and planned for the day. Unfortunately, at the time, the RCMP members did not have the knowledge of his potential for violence and level of dangerousness. This tragic event highlights the value of intelligence-led policing in determining the threat to members of the criminal justice community and their families.

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MODERN THREAT

Years later, the psychopath in society still poses a significant threat. It is not necessarily the big-city gang member, the Hells Angels, or the Mafia killing our criminal justice officials, although one of these descriptions may fit the psychopath. Rather, it is the psychopathic personality, not the gang affiliation, that would serve as the common denominator. And, granted, not every psychopath is a murderer, but it often is the psychopath with other behavioral and contextual factors (e.g., perceived loss, revenge orientation, increased negative contact with law enforcement) that creates a "perfect storm" and catches officers and other innocent people in the "maelstrom."

In March 2011, concerning the Mayerthorpe murders, the public fatality inquiry report became public.[3] Assistant Chief Judge Daniel R. Pahl had some insightful comments.

> Those responsible for the planning and execution of operations at the Roszko property could have had better information. Whether it would have markedly affected the ultimate outcome cannot be known. It is known, however, that more information is better than less, and future incident commanders should have the best possible information available to them. This is especially so as the evidence is that threats to police have increased significantly in recent years.[4]

Efforts to address this information deficit commenced well in advance of the inquiry. A system upgrade now gives members immediate access to background file information.

Judge Pahl continues.

> Raw file information may lack depth, however, and the RCMP has, therefore, also established a Behavioral Sciences Group. This unit is operating in its developmental stages and will require additional resources to achieve its potential. It is intended to be a dedicated criminal threat assessment unit with professional psychological support and has access to a broader data base than will a detachment. In conjunction with this unit's mandate, it has also been recommended that each detachment maintain ongoing operational intelligence files on perceived threats. I strongly support that recommendation but I go somewhat further. The evidence at this inquiry shows that some individual members felt the need to develop their own threat list. It was also apparent that there was a lack of continuity of information. Staff members had significantly longer service than the officers, but most historical information as was available from the

staff was necessarily anecdotal in nature. It is possible that without a formalized system, this approach may, however inadvertently, continue to prevail. RCMP detachments are busy places. Matters of individual initiative are often subsumed by diverse general duties and emergencies. Notwithstanding the best intentions of individuals, oversights occur. I believe that detachments should carefully avoid any ad hoc approach to the gathering and maintenance of threat assessment intelligence.[5]

Officer Safety Initiative

In every jurisdiction worldwide, police know of individuals who pose an elevated risk to officers due to the combined elements of severe substance abuse, mental illness, psychopathy, personality disorders, or a pattern of criminal behavior. However, not all agencies have a strategy to deal with these persons and, therefore, lack specific tactical response plans. While Mayerthorpe serves as an example of a worst-case scenario, police should not find themselves in potentially life-threatening situations without sufficient information about the risks they face.

> **"Determining the individuals who pose the most danger to law enforcement involves constructing templates based on research and related experiences."**

The Threat to Criminal Justice Officials (TCJO) initiative focuses on the risk posed by individuals identified as dangerous to police or other criminal justice personnel, including officers, prosecutors, judiciary officials, jury members, sheriffs, and corrections officers. It allows law enforcement to be forewarned and forearmed and provides a predictive instrument to initiate a preventive strategy. The plan uses and encourages intuition combined with research to save the lives of the criminal justice family. A customized version of this initiative presently is being used by the Calgary, Alberta, Police Service and is being developed by the King County, Washington, Sheriff's Office.

This risk evaluation requires gathering and examining available case materials and background information regarding the subject and potential victims. Risk-enhancing and -reducing factors, often dynamic and responsive to changing circumstances, are identified and articulated in a written report. These factors come from statistical information based on research conducted by experts in various fields, including psychiatry, psychology, law enforcement, and threat assessment. Along with a review of the subject's current circumstances, they help estimate the level of risk—none, low, moderate, high, or imminent—involved. I recommend developing an operational plan based on the identified risk factors and a realistic appraisal of the capabilities of the agencies responsible for intervening and managing the risk.

Someone may look at this methodology and consider it complicated and beyond the expertise of a smaller department. Structured strategy based on current risk and threat assessment models, the use of a custom template, and access to behavioral science experts can give officers the requisite knowledge to put this plan into place in their jurisdictions.

Gathering Subject Information

Identifying the individuals who pose danger to police involves collecting and analyzing information pertaining to the reasons for their anti-police attitude and descriptions of their criminal

Sample Template Items

Violence Type	Previous Violence Toward Criminal Justice Officials	Lifestyle
Instrumental violence (planned, goal directed)	Documented assault of criminal justice officials	Motivation (revenge/fear of loss)
Reactive violence (explosive, impulsive)	Threats to criminal justice officials	High contact with criminal justice officials
Nonviolence	None	Limited contact/ no known motivation

activity, previous violent acts or threats made toward authority figures, current mental health status, and any prior diagnosis. Information about homicidal or suicidal ideation, as well as any childhood or adolescent maladaptation, is additionally useful but often unavailable.

A potentially expedient and useful way of identifying the subjects who may pose danger is simply to ask criminal justice officials. For instance, through an open letter or memo to all criminal justice agencies in a jurisdiction, personnel can outline this program and ask the basic question "Have you encountered an individual in your work who you believe is likely to attack a criminal justice official?" That question, by itself, may prove sufficient, but a few inclusionary criteria can assist in maximizing the value of the response. For instance, the person has—

- made threats or displayed assaultive behavior toward authority;
- amassed a record of violent behavior with little regard for consequences;
- seemed to display a need for revenge; or
- experienced a series of losses (e.g., freedom, relationship, property, employment).

Rating the Threat

Determining the individuals who pose the most danger to law enforcement involves constructing templates based on research and related experiences. These templates allow agencies to do a form of triaging to determine where best to place their resources. As a triage tool, the templates are not subject to academic scrutiny and do not require users to have an academic background. Although predictive, they are not actuarial measures and would not constitute part of a psychological or behavioral assessment. Templates allow an *objective* look at subjects who previously may have been identified *subjectively*. The templates are based on years of research on violence in general and toward police specifically.[6]

The TCJO Template is a simple 10-point measure that agencies can customize and adapt to their needs and parameters. Departments with no access to criminal records or correctional information will require different template items than agencies with more information available to them. Templates are accompanied by scoring guides that cite related literature serving as source material and demonstrate the scoring

methodology.[7] While the templates help determine the probability of targeted violence and the severity of the outcome, the imminence must be evaluated by looking at patterns of behavior, threats, planning, life circumstances, and target availability.

Evaluating the Threat

Agency experts can provide risk assessments of persons dangerous to police and other criminal justice officials. As always, potential assailants may remain largely undetected, but the judicious use of trained threat assessment professionals can reduce the danger subjects pose to those responsible for criminal justice. The threat assessment actually should be referred to as a threat evaluation and management plan because it involves more than just an assessment of threat. The TCJO template serves as only one part of the evaluation process. While it assesses the risk, an evaluation of the context and, finally, a management and operational, or tactical, plan must follow.

> **"We must become proactive in protecting our criminal justice family."**

Assessing and predicting potential violence entail evaluating observable individual traits and situational indicators known to be consistent with previous violent acts. Agency officials must reach deductions and subjective opinions, and, as such, violence may be over- or underpredicted in some cases. Risk for violence is dynamic in that it changes with variations in the offender's thinking and circumstances. The context in which the threat exists also is key to determining risk. Information provided for analysis must be complete, current, and accurate.

Creating an Operational Plan

This phase employs the skill of tactical experts. It involves an assessment of the risks in various circumstances (e.g., chance encounters, vehicle stops, arrests away from the residence, entries into a suspect's property or residence, and hostage/barricade situations). The agency of jurisdiction then would use the evaluation and recommendations to develop or adopt the tactical response plans for dealing with the individual. In the case of a person who scores high on the template and who has exhibited behavior that warrants caution, an intervention plan may involve a tactical team. The ability to have individuals determined to be high risk flagged on a system, such as the Canadian Police Information Center or similar tool, is paramount, and the operational plan must be available on that system. An electronic mapping system that pinpoints the subject's frequented locations also should be considered.

CONCLUSION

As I wrote this, another police officer was murdered nearby. I believe that a rough ride is ahead for criminal justice officials—more specifically, police officers. Looking at the latest perpetrators believed to have shot and killed law enforcement officers, including James Roszko (Alberta, Canada); Maurice Clemmons (Lakewood, Washington); Johnny Simms (Miami, Florida); or Hydra Lacy, Jr. (St. Petersburg, Florida), shows that they have similar features, including early or previous violence, threat or aggression toward authority, perceived loss of freedom, use of weapons in violent acts, and

personality disorders with psychopathic features. The revenge-oriented, nothing-more-to-lose psychopath will be a huge nemesis for law enforcement. We must become proactive in protecting our criminal justice family. ✦

Endnotes

[1] *http://medical-dictionary.thefreedictionary.com/Psychological+Autopsy* (accessed September 28, 2011)

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[3] For more information, visit *http://justice.alberta.ca/programs_services/fatality/Pages/fatality_reports.aspx* (accessed September 29, 2011).

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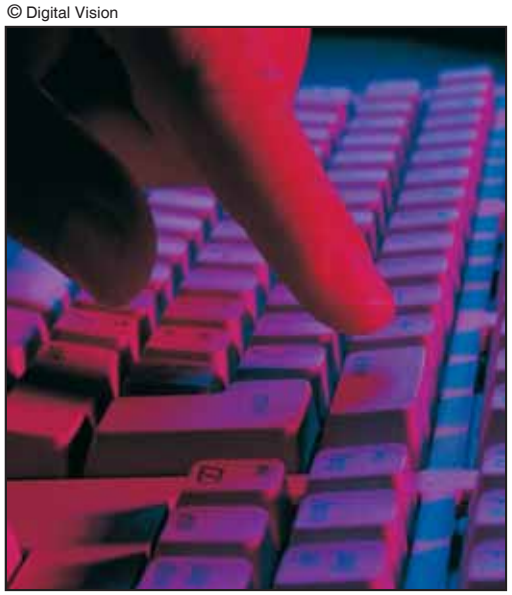
[6] The templates are based largely on years of research conducted by Anthony J. Pinizzotto and Edward F. Davis, who served in the FBI's Behavioral Science Unit, and Charles E. Miller III, currently with the FBI's Criminal Justice Information Services Division. The reports resulting from this research, *Killed in the Line of Duty* (1992); *In the Line of Fire* (1997); and *Violent Encounters: Felonious Assaults on America's Law Enforcement Officers* (2006), are available from the UCR Program Office, FBI Complex, 1000 Custer Hollow Road, Clarksburg, WV 26206-0150, or by calling 888-827-6427.

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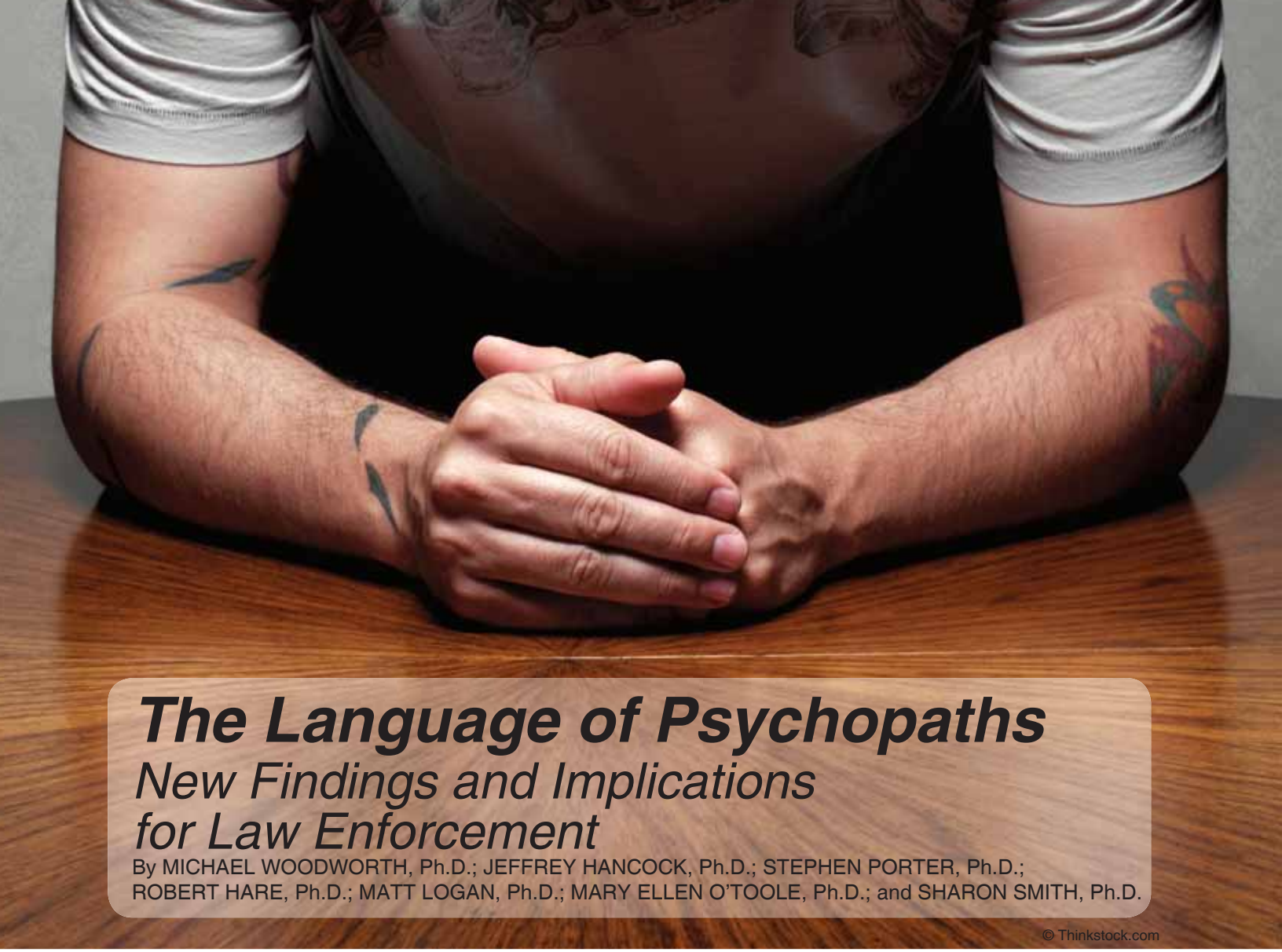
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The Language of Psychopaths

New Findings and Implications for Law Enforcement

By MICHAEL WOODWORTH, Ph.D.; JEFFREY HANCOCK, Ph.D.; STEPHEN PORTER, Ph.D.; ROBERT HARE, Ph.D.; MATT LOGAN, Ph.D.; MARY ELLEN O'TOOLE, Ph.D.; and SHARON SMITH, Ph.D.

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For psychopaths, not only a lack of affect but also inappropriate emotion may reveal the extent of their callousness. Recent research suggested that much can be learned about these individuals by close examination of their language. Their highly persuasive nonverbal behavior often distracts the listener from identifying their psychopathic nature.[1] For example, on a publically available police interview with murderer and rapist Paul Bernardo, his powerful use of communication via his hand gesturing is easily observable and often distracts from his spoken lies.[2] The authors offer their insights into the unique considerations pertaining to psychopaths' communication.

Psychopathy

Robert Pickton, convicted of the second-degree murder of six women in December 2007, initially was on trial for 26 counts of first-degree murder. He once bragged to a cellmate that he intended to kill 50 women. Details provided in court revealed brutal and heinous murders that often included torture, degradation, and dismemberment of the victims. The authors opine that Mr. Pickton probably would meet the criteria for psychopathy, a destructive personality disorder that combines

a profound lack of conscience with several problematic interpersonal, emotional, and behavioral characteristics.

Consistent with psychopathy, Robert Pickton's self-report and presentation during his interrogation showed a man devoid of emotion. His demeanor during this lengthy questioning reflected detachment and boredom. During most of his trial, Mr. Pickton was described as emotionless. Individuals present in court expressed dismay over his lack of emotion during the reading of horrifying impact statements.

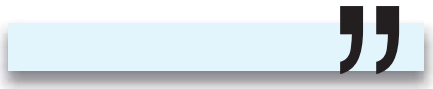
With the nonchalant and emotionless demeanor of a psychopath, Robert Pickton would make an interesting case study. Reviewing his videotaped self-report with the sound muted, it appeared that he was reporting some mundane incident, rather than detailed accounts of the heinous murders he committed.

A psychopath recently interviewed by one of the authors recounted a vicious murder he had committed. "We got, uh, we got high, and had a few beers. I like whiskey, so I bought some whiskey, we had some of that, and then we, uh, went for a swim, and then we made love in my car, then we left to go get some more, some more booze and some more drugs." A recent study explained how this narrative might reveal important information regarding the mindset of a psychopath.[3]

Conning, manipulation, and a desire to lie for the sake of getting away with it—often referred to as "duping delight"—are well known characteristics of the psychopath. These behaviors, combined with a self-confident swagger and ability to distract the listener with grandiose self-presentation, make it difficult to properly follow their self-report.



Individuals' language is one of the best ways to glean insight into their thoughts and general outlook.



Analysis and Technology

Individuals' language is one of the best ways to glean insight into their thoughts and general outlook. Recent advances in technology make it possible to examine more closely the language of various clinical populations through automatic linguistic analysis programs. These applications can differentiate between a variety of individual and personality factors.[4] The tools range from simple to sophisticated, but they all essentially identify linguistic patterns and count their frequency relative to a control language.

Considering the speech of narcissists, they use language related to the self more than nonnarcissistic people because of their primary concern with themselves. To analyze this, a program could count the number of times the words "I," "me," or "my" occurred in a person's speech and compare that to the general population. A narcissist's speech should have a higher percentage of these types of words.

Until recently, these tools have not been used to analyze the speech production of criminals and psychopathic individuals. A previous study using human coders found that there are differences in the speech of psychopaths and nonpsychopaths. Experts found that psychopaths more likely will exaggerate the spontaneity of their homicides. They may label a cold-blooded murder as a crime of passion and omit incriminating details of what occurred during the act.[5]

Research on speech acoustics indicated that psychopaths do not differentiate in voice emphasis between neutral and emotional words. Other analysis suggested that the speech narratives of these individuals

are organized poorly and incoherent.[6] This is surprising because psychopaths are excellent storytellers who successfully con others.

This finding leads to the interesting question of how psychopaths can have such manipulative prowess. In addition to their skilled use of body language, recent research indicated that they are skilled at faking emotional expressions, approaching the skill level of emotionally intelligent individuals, despite being largely devoid of emotion.[7] They are capable of adopting various masks, appearing empathetic and remorseful to the extent that they can talk and cry their way out of parole hearings at a higher rate than their less dangerous counterparts.

Language analysis tools indicate that many aspects of language are not consciously controllable by the speaker. Words that linguists call function words are unconsciously produced by people. These include pronouns, such as "I," "me," and "my"; prepositions like "to" and "from"; and likewise, articles "a" and "the." Words can reveal the inner workings of a person's mind, such as the narcissist's focus on the self. While word patterns easily are measured by computer programs, they are difficult for human coders to determine because people tend to ignore function words and focus on content words (verbs and nouns, such as "kill" and "knife"). Because psychopaths are skilled at manipulating, deceiving, and controlling their self-presentation, a computerized tool examining subtle aspects of their language represents a new avenue to uncover important insights into their behavior and diagnosis.

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Two automated text analysis tools—Wmatrix and the Dictionary of Affect and Language—were used by researchers to examine for the first time the crime narratives of a group of psychopathic and nonpsychopathic murderers.[8] The results indicated that when describing their murders, psychopaths more likely would provide information about basic needs, such as food, drink, and money. For example, in the earlier narrative, the offender talked about eating, drinking, and taking drugs the day he committed the murder.

Psychopathic murderers differ in other ways of speaking. Compared with nonpsychopaths, they make fewer references to social needs relating to family and friends. Research indicated that the selfish, instrumental, goal-driven nature of psychopaths and their inability to focus on emotional aspects of an event is discernable by closely examining their language.[9] Psychopaths' language is less emotionally intense. They use more past-tense verbs in their narrative, suggesting a greater psychological and emotional detachment from the incident.

The authors' study was the first step in using automated language analysis to further the understanding of the psychopath's mind-set and to begin developing a program for suggesting an individual's psychopathy. An ongoing study is attempting to examine language differences in noncriminal individuals who have high psychopathic indicators.

Interrogators and Investigators

Considering the nature of psychopathy and the fascinating aspects of the psychopath's language, law enforcement officials should keep certain points in mind when interviewing or interacting with these individuals. During an interview, Ted

Bundy once said, "I don't feel guilty for anything. I feel sorry for people who feel guilt."

Psychopaths are incapable of identifying with or caring about the emotional pain that they have caused victims or their families, so any strategy to appeal to the psychopath's conscience probably will be met with failure and frustration. This type of strategy will prove a waste of time. It may irritate psychopathic individuals and cause them to be less inclined to continue to engage with their interviewers.

Interrogators should remain aware of the psychopath's nonverbal skills—body language and facial expressions that create displays of sincerity—used for deceit in the interview room. Psychopaths are master manipulators who have fooled many professionals. To facilitate the identification of an individual as a psychopath, it is important to collect as much language as possible. Interviews with suspected psychopaths should be recorded for analysis.

Social Media

As the number of people online increases, so does the amount of criminally minded individuals using the Web. This includes psychopathic individuals aware that this may be a fruitful environment for victimizing others. Individuals motivated to lie do worse when they are face-to-face with a potential victim. Recent research illustrated that computer-mediated environments, such as text-based chatrooms, enhance the ability of liars to get away with their lies.[10]

Despite the difficulties presented by Internet exchanges, several opportunities exist. The majority of online communication is text based, which means that unlike face-to-face contact, online interactions leave a record of the actual words. For example, the Long Island Serial Killer used a Web site to attract his victims and communicate with them. The language from these interactions gave law enforcement officers an advantage when assessing the motivations and needs of the perpetrator. Words provide a window into the minds of criminals, helping to determine whether they fit any particular personality profile, such as psychopathy.

> ***To facilitate the identification of an individual as a psychopath, it is important to collect as much language as possible.***

Conclusion

Considering some of the unique aspects of psychopathic language, it might be possible to detect the psychopath in online environments where information is exclusively text based. To catch a psychopath in this context, law enforcement agencies need to be aware of the subtleties of their deceptive communication styles. Overall, there is a need for further scientific research on the language of psychopaths and training in statement analysis and deception detection techniques.✦

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Wanted: *Photographs*

The *Bulletin* staff always is looking for dynamic, law enforcement-related images for possible publication in the magazine. We are interested in those that visually depict the many aspects of the law enforcement profession and illustrate the various tasks law enforcement personnel perform.

We can use digital photographs or color prints. It is our policy to credit photographers when their work appears in the magazine. Contributors sending prints should send duplicate copies, not originals, as we do not accept responsibility for damaged or lost prints. Send the material to: Art Director, *FBI Law Enforcement Bulletin,* FBI Academy, Quantico, VA 22135, or to *leb@fbiacademy.edu*.

Bulletin Notes

Law enforcement officers are challenged daily in the performance of their duties; they face each challenge freely and unselfishly while answering the call to duty. In certain instances, their actions warrant special attention from their respective departments. The *Bulletin* also wants to recognize those situations that transcend the normal rigors of the law enforcement profession.



Officer Peterson

Officer Ginger Peterson of the Cheyenne, Wyoming, Police Department responded to an emergency call about a local house fire. Arriving at the scene before the fire department, she discovered flames breaching the northwest window of the home and spreading rapidly. She soon learned that occupants still were inside and, without hesitation, entered the basement apartment of the burning building. Officer Peterson woke up two women in the apartment and located a third person, all unaware of the fire above them. After rapidly escorting the three to safety, she gathered the occupants of the main floor, which consisted of two small children and their mother, and put them in her car to keep them from the cold and snowy conditions outside. Because of Officer Peterson's quick action, all the occupants of the home escaped without injury.



Deputy Rowan

Deputy Keven Rowan of the Rockwall County, Texas, Sheriff's Office was patrolling a reservoir area in the early morning when he noticed a vehicle in the water. It appeared the driver had maneuvered down an adjacent boat ramp. Upon closer inspection, he saw two young women trapped in the car, unable to open the doors or windows. Deputy Rowan removed his equipment belt and swam about 30 yards out to the car, where it was sinking under 10 to 12 feet of water. He used a glass-breaking device to gain entry and pulled both women out just as the vehicle fully submerged. As neither of the women could swim, Deputy Rowan carried them both to a point where his feet could touch the bottom, then helped them to safety up the nearby boat ramp.

Nominations for the Bulletin Notes should be based on either the rescue of one or more citizens or arrest(s) made at unusual risk to an officer's safety. Submissions should include a short write-up (maximum of 250 words), a separate photograph of each nominee, and a letter from the department's ranking officer endorsing the nomination. Submissions can be mailed to the Editor, *FBI Law Enforcement Bulletin*, FBI Academy, Quantico, VA 22135 or e-mailed to *leb@fbiacademy.edu*. Some published submissions may be chosen for inclusion in the Hero Story segment of the television show "America's Most Wanted."

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Patch Call



The patch of the Colorado State University Police Department in Fort Collins features the school's prominent stone-columned Administration Building as seen from the south end of the Oval, an expansive park one-quarter mile around. The Oval has been a center of activity on the campus since 1909 and is lined with 65 American elm trees, some of which are depicted on the police department patch. A number of other academic and administrative buildings line this green area, the oldest of which was built in 1881, 11 years after the university's founding.



The Desert Hawk Fugitive Task Force was founded in 1992 as a joint effort between the FBI's Phoenix, Arizona, office and local law enforcement agencies to target violent fugitives and repeat offenders for arrest. The task force currently is staffed by two special agents and members of the Maricopa County Sheriff's Office, Mesa Police Department, and Scottsdale Police Department. Its diamond-shaped patch features a vigilant eagle over a background of the sun rising above the desert. The bottom of the patch depicts a set of handcuffs, a symbol of the task force's great success since its inception.